IN THE SUPREME COURT
STATE OF GEORGIA
IN THE
SUPREME COURT OF GEORGIA

GEORGIA REPUBLICAN PARTY, THE NATIONAL REPUBLICAN SENATORIAL COMMITTEE, and THE REPUBLICAN NATIONAL COMMITTEE,

Petitioners,

v.

DEMOCRATIC PARTY OF GEORGIA, DSCC, and WARNOCK FOR GEORGIA,

Respondents.

CASE NO. S23M0376

Court of Appeals Docket Number A23E0013

OPPOSITION TO EMERGENCY PETITION FOR WRIT OF CERTIORARI AND EMERGENCY MOTION TO STAY

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INTRODUCTION

Introduction

This Saturday, November 26, no fewer than 19 counties plan to offer early voting in the runoff election for one of Georgia's seats in the U.S. Senate. These counties have announced and promoted that voting will be available this Saturday, and voters in those counties—in which over four million Georgians reside—have made plans to vote based on those communications. Contrary to Intervenors' baseless claims, *several* of these counties voted for the Republican nominee for U.S. Senate in the November 8 general election, sometimes by wide margins.[1]

The counties' plans are squarely in compliance with Georgia law, which requires that counties begin advance voting for this rapidly approaching runoff election "as soon as possible" to maximize the number of days on which Georgians can vote in the runoff. O.C.G.A. § 21-2-385(d)(1)(B). As now two courts have recognized, although Georgia law precludes counties from offering early voting on the second Saturday before a "primary or election" if that Saturday comes immediately after a holiday (hereinafter, the "Holiday Exception"), that restriction does not apply to runoffs. *Id.* § 21-2-385(d)(1). In fact, the Legislature in 2017 deleted the word "runoff" from the Holiday Exception. Thus, unlike other provisions of O.C.G.A. § 21-2-385 that expressly assign early voting and provisional ballot rules to "primary, election, or runoff," *id.* §§ 21-2-385(a), (d)(1), (e) (emphasis added), the Holiday Exception intentionally excludes runoffs. Accordingly, several counties held advance voting on the Saturday after Christmas in the last Senate runoff election just last year.

As of the evening of November 22, the Secretary of State's Office's Chief Operating Officer, Gabriel Sterling, has publicly identified 18 counties presently offering voting this Saturday: Baker, Bibb, Chatham, Clarke, Cobb, DeKalb, Douglas, Fulton, Gwinnett, Macon, Mitchell, Muscogee, Newton, Randolph, Rockdale, Terrell, Walton, and Ware. @GabrielSterling, Twitter (Nov. 22, 2022 at 5:16 p.m.), https://twitter.com/GabrielSterling/status/1595179380535431169. Since that time, Respondents are aware of at least one additional county (Henry) that has announced Saturday voting. *See* @HenryCounty, Twitter (Nov. 22, 2022, 7:27 p.m.), https://twitter.com/HenryCounty/status/1595212399036047360. Republican Senate candidate Herschel Walker's share of the general election vote exceeded 60% in at least three of these counties and at least 70% in two of them.

[1] Alone, the Georgia Republican Party, National Republican Senatorial Committee, and Republican National Committee ("Intervenors") persist in their unsupported claim that Respondents are aware of at least 18 additional counties offering voting this Saturday: Baker, Bibb, Chatham, Clarke, Cobb, DeKalb, Douglas, Fulton, Gwinnett, Macon, Mitchell, Muscogee, Newton, Randolph, Rockdale, Terrell, Walton, and Ware. Respondents are aware of at least one additional county (Henry) that has announced Saturday voting. Republican Senate candidate Herschel Walker's share of the general election vote exceeded 60% in at least three of these counties and at least 70% in two of them.

Alone, the Georgia Republican Party, National Republican Senatorial Committee, and Republican National Committee ("Intervenors") persist, asking this Court to grant a petition for certiorari on an emergency basis *and* to stay the Superior Court's order below, injecting chaos into the runoff election *a mere three days before* voting is set to take place. Their appeal is deficient on its face—Intervenors have failed to comply with this Court's "mandatory" requirement in Rule 38 that petitions for certiorari be filed only "after the date of entry of judgment" in the Court of Appeals. For that reason, the Court must deny their petition for a writ of certiorari.

Even if a writ of certiorari could be granted, the Intervenors are not entitled to a stay. Beyond being wrong on the merits and lacking standing to appeal, their allegations fall far short of the irreparable harm necessary to warrant the emergency relief they seek. They have not even *claimed* (much less proven) that they would suffer any irreparable harm absent a stay—a fact that is itself sufficient to deny their petition.

Statement of the Case

Georgians will choose their next Senator in a runoff scheduled for December 6, 2022. O.C.G.A. § 21-2-501(a)(1). Early voting in that runoff is governed by O.C.G.A. § 21-2-385(d)(1), which sets forth different rules for primaries, general elections, and runoffs. For example, whereas advance voting must begin "[a]s soon as possible prior to a general election," such advance voting must begin "[a]s soon as possible prior to a runoff," but "no later than the second Monday immediately prior to such runoff." *Id.* (emphases added).

At issue here is § 21-2-385(d)(1)'s second sentence, which provides for weekend voting prior to "primar[ies] and election[s]." Most relevant is that the Holiday Exception, which is set out in the statute's Saturday provision, applies only to primaries and general elections, not to runoffs.

Indeed, their own brief **admits** that the "General Assembly enacted" an advance

Superior Court's Declaratory and Injunctive Relief on November 22. This Court ordered Respondents to file a response by 9:00 a.m. on November 23.

ARGUMENT

I. Intervenors' improper petition for a writ of certiorari should be denied.

Intervenors' petition for a writ of certiorari is fatally premature. This case remains pending before the Court of Appeals, which has not issued a final judgment. This Court's Rule 38, which sets forth "mandatory" prerequisites to seeking a writ of certiorari to the Court of Appeals, instructs that such a petition may not be filed until "*after* the date of entry of judgment." Because the Court of Appeals has not issued a judgment in this case, Intervenors cannot yet seek certiorari.

Intervenors cite no authority suggesting they can ask this Court to issue a writ of certiorari before the Court of Appeals enters its judgment. Their only remotely relevant citation is O.C.G.A. § 5-6-34(a), *see* Pet. 8 & n.2, but nothing in that provision allows Intervenors to skirt Rule 38's mandatory requirement that a petitioner wait until the Court of Appeals enters judgment. While Section 5-6-34(a) sets forth the jurisdiction of the Court of Appeals and this Court to entertain direct appeals from "judgments and rulings of the superior courts" and other trial-level tribunals, it provides no authority to seek a writ of certiorari to the Court of Appeals before that court even issues a judgment.

Perhaps aware that Rule 38 bars their effort to seek certiorari at this time, Intervenors attempt to frame the Court's Section 5-6-34(d) to stay the Superior Court's decision pending full merits review as a decision that Intervenors may "appeal" to this Court. Specifically, they claim that the Court of Appeals' denial of a stay pending appeal "had the effect of extending the Plaintiffs' injunctive relief, and thus falls under Section 5-6-34(a)(4)." Pet. 9 n.2. That theory is seriously flawed. Section 5-6-34(a) provides only for direct appeals of trial court orders, not an appeal from the Court of Appeals to this Court. Indeed, there is no such thing as an "appeal" from the Court of Appeals to this Court; the only option for a party seeking to overturn a

decision of the Court of Appeals is to ask for a writ of certiorari. Ga. Const. art. VI, § VI, ¶ V.

which requires Intervenors to wait until after the Court of Appeals issues its judgment. Because that has not yet happened, Intervenors' petition must be denied.

Intervenors have not sought to appeal the Superior Court's order directly to this Court. The only notice of appeal that has been filed in the Superior Court in this case is the State's, which was directed to the Court of Appeals. In any event, Intervenors cannot directly appeal the Superior Court's order to this Court because this case does not involve any of the matters that fall under this Court's mandatory appellate jurisdiction. *See* Ga. Const. art. VI, § VI, ¶¶ II, III.

II. Intervenors have not proven their entitlement to a stay.

"A stay is an intrusion into the ordinary processes of administration and judicial review, and accordingly is not a matter of right, even if irreparable injury might otherwise result to the appellant." *Nken v. Holder*, 556 U.S. 418, 427 (2009); *see Green Bull Ga. Partners, LLC v. Register*, 301 Ga. 472, 473 n.3 (2017) (citing federal case law for standard governing stay pending appeal). Intervenors have not satisfied their burden of showing an entitlement to this extraordinary remedy. They have not proven (1) "a strong [not] substantially injure the other parties interested in the proceeding," or (4) that a showing that [they are] likely to succeed on the merits," (2) that they "will be irreparably injured absent a stay," (3) that a "stay will [not] substantially injure the other parties interested in the proceeding," or (4) that a stay will serve "the public interest." *Democratic Exec. Comm. of Fla. v. Lee*, 915 F.3d 1312, 1317 (11th Cir. 2019).

Intervenors are not likely to succeed on the merits.

The Holiday Exception does not apply to runoffs.

The sole merits issue in this case is the proper construction of O.C.G.A. § 21-2-385(d), which governs advance voting for Georgia's elections. That provision plainly permits counties to commence "advance voting" as "*soon as possible* prior to a runoff from any general primary election but not later than the second Monday immediately prior to such runoff." O.C.G.A. § 21-2-385(d)(1)(B) (emphasis added).

Counties are therefore free to hold advance voting days for runoffs as soon as practicable after a "primary or election." *Id.*

Intervenors' claim that counties may not hold early voting on November 26 runs headlong into the statutory text, which expressly applies this limitation only to primary or general elections, and not runoffs. The provision reads in relevant part:

> Voting . . . shall be conducted on the second and third Saturdays during the hours of 9:00 A.M. through 5:00 P.M. and, if the registrar or absentee ballot clerk so chooses, the second Sunday, the third Sunday, or both the second and third Sundays prior to ***a primary or election*** during hours determined by the registrar or absentee ballot clerk, but no longer than 7:00 A.M. through 7:00 P.M.; provided, however, that, if such second Saturday is a public and legal holiday pursuant to Code Section 1-4-1, if such second Saturday follows a public and legal holiday occurring on the Thursday or Friday immediately preceding such second Saturday, or if such second Saturday immediately precedes a public and legal holiday occurring on the following Sunday or Monday, such advance voting shall not be held on such second Saturday but shall be held on the third Saturday prior to ***such primary or election*** beginning at 9:00 A.M. and ending at 5:00 P.M.

Id. § 21-2-385(d)(1)(B) (emphases added). As the emphasized text makes clear, the Holiday Exception applies only to primary and general elections, not runoffs.

The lack of any reference to runoffs is not an accident. In the very same subsection, the Legislature made distinctions among three categories of elections: (1) a primary election (referred to as a "primary"); (2) a general election (referred to as an "election," *see id.* § 21-2-2(5)); and (3) a runoff. Section 21-2-385(d)(1) creates distinct rules for these different categories of elections and refers to them expressly when doing so. For example, advance voting must begin the fourth Monday immediately prior to a primary or general election; for runoffs, however, advance voting must instead begin as

categories of elections and refers to them expressly when doing so. For example, advance voting must begin the "fourth Monday immediately prior" to a primary or general election, for runoffs, however, advance voting must instead begin as "soon as possible . . . but no later than the second Monday" prior to the election. "primary or election"—but not a "runoff"—when drafting the second sentence in § 21-2-385(d)(1) is an unmistakably deliberate omission and "a matter of considered choice." *Citibank (S.D.), N.A. v. Graham*, 315 Ga. App. 120, 122 (2012). Similarly, subsection (b) requires counties to publish daily reports on the number of provisional ballots cast until the fourth day following "a primary, election, or runoff." (emphasis added). The following year, the Legislature amended that provision by striking a single word, "runoff," and leaving "primary or election." 2017 Ga. Laws Act 250 § 18. In doing so, the Legislature made unequivocally clear that the Holiday Exception would now apply to a "primary or election" but not a runoff. *Id.* when certain rules should, and should not, apply to runoffs. *Avila v. State*, 333 Ga. App. 66, 70 (2015). Its choice to refer *specifically* to a "primary or election"—but *not* a "runoff"—when drafting the second sentence in § 21-2-385(d)(1) is an unmistakably deliberate omission and "a matter of considered choice." *Citibank (S.D.), N.A. v. Graham*, 315 Ga. App. 120, 122 (2012).

Any doubt about the Legislature's intent is put to rest by § 21-2-385(d)(1)'s history. When the Legislature crafted the Holiday Exception in 2016, it applied to each "primary, election, *or runoff*." 2016 Ga. Laws Act 347 § 4 (emphasis added).

that seek to disrupt this practice, which has governed successive runoffs—the Secretary's now-abandoned bulletin notwithstanding.

CONCLUSION

The Court should deny Intervenors' emergency petition for a writ of certiorari and, in any event, decline to stay the orders below.

Respectfully submitted on this 23rd day of November 2022.

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This submission does not exceed the word-count limit imposed by Rule 20.
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Court of Appeals Docket Numbers A23E0013

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing **OPPOSITION TO EMERGENCY PETITION FOR WRIT OF CERTIORARI AND EMERGENCY MOTION TO STAY** prior to its filing by sending a true and correct PDF copy by electronic mail to the following counsel of record of the other parties to this litigation, as follows:

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